Others, however, say that a contrite man is bound to confess at once, as soon as he has a reasonable and proper opportunity. Nor does it matter that the Decretal fixes the time limit to an annual confession, because the Church does not favor delay, but forbids the neglect involved in a further delay. Wherefore by this Decretal the man who delays is excused, not from sin in the tribunal of conscience; but from punishment in the tribunal of the Church; so that such a person would not be deprived of proper burial if he were to die before that time. But this seems too severe, because affirmative precepts bind, not at once, but at a fixed time; and this, not because it is most convenient to fulfill them then (for in that case if a man were not to give alms of his superfluous goods, whenever he met with a man in need, he would commit a mortal sin, which is false), but because the time involves urgency. Consequently, if he does not confess at the very first opportunity, it does not follow that he commits a mortal sin, even though he does not await a better opportunity. unless it becomes urgent for him to confess through being in danger of death. Nor is it on account of the Church's indulgence that he is not bound to confess at once, but on account of the nature of an affirmative precept, so that before the commandment was made, there was still less obligation.

Others again say that secular persons are not bound to confess before Lent, which is the time of penance for them; but that religious are bound to confess at once, because, for them, all time is a time for penance. But this is not to the point; for religious have no obligations besides those of other men, with the exception of such as they are bound to by vow.

Reply to Objection 1: Hugh is speaking of those who die without this sacrament.

Reply to Objection 2: It is not necessary for bodily health that the physician be sent for at once, except when there is necessity for being healed: and the same applies to spiritual disease.

Reply to Objection 3: The retaining of another's property against the owner's will is contrary to a negative precept, which binds always and for always, and therefore one is always bound to make immediate restitution. It is not the same with the fulfillment of an affirmative precept, which binds always, but not for always, wherefore one is not bound to fulfill it at once.

Whether one can be dispensed from confession?

Objection 1: It would seem that one can be dispensed from confessing his sins to a man. For precepts of positive law are subject to dispensation by the prelates of the Church. Now such is confession, as appears from what was said above (A[3]). Therefore one may be dispensed from confession.

Objection 2: Further, a man can grant a dispensation in that which was instituted by a man. But we read of confession being instituted, not by God, but by a man (James 5:16): "Confess your sins, one to another." Now the Pope has the power of dispensation in things instituted by the apostles, as appears in the matter of bigamists. Therefore he can also dispense a man from confessing.

On the contrary, Penance, whereof confession is a part, is a necessary sacrament, even as Baptism is. Since therefore no one can be dispensed from Baptism, neither can one be dispensed from confession.

I answer that, The ministers of the Church are appointed in the Church which is founded by God. Wherefore they need to be appointed by the Church before exercising their ministry, just as the work of creation is presupposed to the work of nature. And since the Church is founded on faith and the sacraments, the ministers of the Church have no power to publish new articles of faith, or

to do away with those which are already published, or to institute new sacraments, or to abolish those that are instituted, for this belongs to the power of excellence, which belongs to Christ alone, Who is the foundation of the Church. Consequently, the Pope can neither dispense a man so that he may be saved without Baptism, nor that he be saved without confession, in so far as it is obligatory in virtue of the sacrament. He can, however, dispense from confession, in so far as it is obligatory in virtue of the commandment of the Church; so that a man may delay confession longer than the limit prescribed by the Church.

Reply to Objection 1: The precepts of the Divine law do not bind less than those of the natural law: wherefore, just as no dispensation is possible from the natural law, so neither can there be from positive Divine law.

Reply to Objection 2: The precept about confession was not instituted by a man first of all, though it was promulgated by James: it was instituted by God, and although we do not read it explicitly, yet it was somewhat foreshadowed in the fact that those who were being prepared by John's Baptism for the grace of Christ, confessed their sins to him, and that the Lord sent the lepers to the priests, and though they were not priests of the New Testament, yet the priesthood of the New Testament was foreshadowed in them.

OF THE NATURE OF CONFESSION (THREE ARTICLES)

We must now consider the nature of confession, under which head there are three points of inquiry:

(1) Whether Augustine fittingly defines confession?

(2) Whether confession is an act of virtue?

(3) Whether confession is an act of the virtue of penance?

Whether Augustine fittingly defines confession?

Objection 1: It would seem that Augustine defines confession unfittingly, when he says (Super Ps. 21) that confession "lays bare the hidden disease by the hope of pardon." For the disease against which confession is ordained, is sin. Now sin is sometimes manifest. Therefore it should not be said that confession is the remedy for a "hidden" disease.

Objection 2: Further, the beginning of penance is fear. But confession is a part of Penance. Therefore fear rather than "hope" should be set down as the cause of confession.

Objection 3: Further, that which is placed under a seal, is not laid bare, but closed up. But the sin which is confessed is placed under the seal of confession. Therefore sin is not laid bare in confession, but closed up.

Objection 4: Further, other definitions are to be found differing from the above. For Gregory says (Hom. xl in Evang.) that confession is "the uncovering of sins, and the opening of the wound." Others say that "confession is a legal declaration of our sins in the presence of a priest." Others define it thus: "Confession is the sinner's sacramental self-accusation through shame for what he has done, which through the keys of the Church makes satisfaction for his sins, and binds him to perform the penance imposed on him." Therefore it seems that the definition in question is insufficient, since it does not include all that these include.

I answer that, Several things offer themselves to our notice in the act of confession: first, the very substance or genus of the act, which is a kind of manifestation; secondly, the matter manifested, viz. sin; thirdly, the person to whom the manifestation is made, viz. the priest; fourthly, its cause, viz. hope of pardon; fifthly, its effect, viz. release from part of the punishment, and the obligation to pay the other part. Accordingly the first definition, given by Augustine, indicates the substance of the act, by saying that "it lays bare"---the matter of confession, by saying that it is a "hidden disease"---its cause, which is "the hope of pardon"; while the other definitions include one or other of the five things aforesaid, as may be seen by anyone who considers the matter.

Reply to Objection 1: Although the priest, as a man, may sometimes have knowledge of the penitent's sin, yet he does not know it as a vicar of Christ (even as a judge sometimes knows a thing, as a man, of which he is ignorant, as a judge), and in this respect it is made known to him by confession. or we may reply that although the external act may be in the open, yet the internal act, which is the cause of the external act, is hidden; so that it needs to be revealed by confession.

Reply to Objection 2: Confession presupposes charity, which gives us life, as stated in the text (Sent. iv, D, 17). Now it is in contrition that charity is given; while servile fear, which is void of hope, is previous to charity: yet he that has charity is moved more by hope than by fear. Hence hope rather than fear is set down as the cause of confession.

Reply to Objection 3: In every confession sin is laid bare to the priest, and closed to others by the seal of confession.

Reply to Objection 4: It is not necessary that every definition should include everything connected with the thing defined: and for this reason we find some definitions or descriptions that indicate one cause, and some that indicate another.

Whether confession is an act of virtue?

Objection 1: It would seem that confession is not an act of virtue. For every act of virtue belongs to the natural law, since "we are naturally capable of virtue," as the Philosopher says (Ethic. ii, 1). But confession does not belong to the natural law. Therefore it is not an act of virtue.

Objection 2: Further, an act of virtue is more befitting one who is innocent than one who has sinned. But the confession of a sin, which is the confession of which we are speaking now, cannot be befitting an innocent man. Therefore it is not an act of virtue.

Objection 3: Further, the grace which is in the sacraments differs somewhat from the grace which is in the virtues and gifts. But confession is part of a sacrament. Therefore it is not an act of virtue.

On the contrary, The precepts of the law are about acts of virtue. But confession comes under a precept. Therefore it is an act of virtue.

Further, we do not merit except by acts of virtue. But confession is meritorious, for "it opens the gate of heaven," as the Master says (Sent. iv, D, 17). Therefore it seems that it is an act of virtue.

I answer that, As stated above (FS, Q[18], AA[6],7; SS, Q[80]; SS, Q[85] , A[3]; SS, Q[109], A[3]), for an act to belong to a virtue it suffices that it be of such a nature as to imply some condition belonging to virtue. Now, although confession does not include everything that is required for virtue, yet its very name implies the manifestation of that which a man has on his conscience: for thus his lips and heart agree. For if a man professes with his lips what he does not hold in his heart,

it is not a confession but a fiction. Now to express in words what one has in one's thoughts is a condition of virtue; and, consequently, confession is a good thing generically, and is an act of virtue: yet it can be done badly, if it be devoid of other due circumstances.

Reply to Objection 1: Natural reason, in a general way, inclines a man to make confession in the proper way, to confess as he ought, what he ought, and when he ought, and in this way confession belongs to the natural law. But it belongs to the Divine law to determine the circumstances, when, how, what, and to whom, with regard to the confession of which we are speaking now. Accordingly it is evident that the natural law inclines a man to confession, by means of the Divine law, which determines the circumstances, as is the case with all matters belonging to the positive law.

Reply to Objection 2: Although an innocent man may have the habit of the virtue whose object is a sin already committed, he has not the act, so long as he remains innocent. Wherefore the confession of sins, of which confession we are speaking now, is not befitting an innocent man, though it is an act of virtue.

Reply to Objection 3: Though the grace of the sacraments differs from the grace of the virtues, they are not contrary but disparate; hence there is nothing to prevent that which is an act of virtue, in so far as it proceeds from the free-will quickened by grace, from being a sacrament, or part of a sacrament, in so far as it is ordained as a remedy for sin.

Whether confession is an act of the virtue of penance?

Objection 1: It would seem that confession is not an act of the virtue of penance. For an act belongs to the virtue which is its cause. Now the cause of confession is the hope of pardon, as appears from the definition given above (A[1]). Therefore it seems that it is an act of hope and not of penance.

Objection 2: Further, shame is a part of temperance. But confession arises from shame, as appears in the definition given above (A[1], OBJ[4]). Therefore it is an act of temperance and not of penance.

Objection 3: Further, the act of penance leans on Divine mercy. But confession leans rather on Divine wisdom, by reason of the truth which is required in it. Therefore it is not an act of penance.

Objection 4: Further, we are moved to penance by the article of the Creed which is about the Judgment, on account of fear, which is the origin of penance. But we are moved to confession by the article which is about life everlasting, because it arises from hope of pardon. Therefore it is not an act of penance.

Objection 5: Further, it belongs to the virtue of truth that a man shows himself to be what he is. But this is what a man does when he goes to confession. Therefore confession is an act of that virtue which is called truth, and not of penance.

On the contrary, Penance is ordained for the destruction of sin. Now confession is ordained to this also. Therefore it is an act of penance.

I answer that, It must be observed with regard to virtues, that when a special reason of goodness or difficulty is added over and above the object of a virtue, there is need of a special virtue: thus the expenditure of large sums is the object of magnificence, although the ordinary kind of average expenditure and gifts belongs to liberality, as appears from Ethic. ii, 7; iv, 1. The same applies to the confession of truth, which, although it belongs to the virtue of truth absolutely, yet, on account

of the additional reason of goodness, begins to belong to another kind of virtue. Hence the Philosopher says (Ethic. iv, 7) that a confession made in a court of justice belongs to the virtue of justice rather than to truth. In like manner the confession of God's favors in praise of God, belongs not to truth, but to religion: and so too the confession of sins, in order to receive pardon for them, is not the elicited act of the virtue of truth, as some say, but of the virtue of penance. It may, however, be the commanded act of many virtues, in so far as the act of confession can be directed to the end of many virtues.

Reply to Objection 1: Hope is the cause of confession, not as eliciting but as commanding.

Reply to Objection 2: In that definition shame is not mentioned as the cause of confession, since it is more of a nature to hinder the act of confession, but rather as the joint cause of delivery from punishment (because shame is in itself a punishment), since also the keys of the Church are the joint cause with confession, to the same effect.

Reply to Objection 3: By a certain adaptation the parts of Penance can be ascribed to three Personal Attributes, so that contrition may correspond to mercy or goodness, by reason of its being sorrow for evil---confession to wisdom, by reason of its being a manifestation of the truth---and satisfaction to power, on account of the labor it entails. And since contrition is the first part of Penance, and renders the other parts efficacious, for this reason the same is to be said of Penance as a whole, as of contrition.

Reply to Objection 4: Since confession results from hope rather than from fear, as stated above (A[1], ad 2), it is based on the article about eternal life which hope looks to, rather than on the article about the Judgment, which fear considers; although penance, in its aspect of contrition, is the opposite.

The Reply to the Fifth Objection is to be gathered from what has been said.

OF THE MINISTER OF CONFESSION (SEVEN ARTICLES)

We must now consider the minister of confession, under which head there are seven points of inquiry:

(1) Whether it is necessary to confess to a priest?

(2) Whether it is ever lawful to confess to another than a priest?

(3) Whether outside a case of necessity one who is not a priest can hear the confession of venial sins?

(4) Whether it is necessary for a man to confess to his own priest?

(5) Whether it is lawful for anyone to confess to another than his own priest, in virtue of a privilege or of the command of a superior?

(6) Whether a penitent, in danger of death can be absolved by any priest?

(7) Whether the temporal punishment should be enjoined in proportion to the sin?

Whether it is necessary to confess to a priest?

Objection 1: It would seem that it is not necessary to confess to a priest. For we are not bound to confession, except in virtue of its Divine institution. Now its Divine institution is made known

to us (James 5:16): "Confess your sins, one to another," where there is no mention of a priest. Therefore it is not necessary to confess to a priest.

Objection 2: Further, Penance is a necessary sacrament, as is also Baptism. But any man is the minister of Baptism, on account of its necessity. Therefore any man is the minister of Penance. Now confession should be made to the minister of Penance. Therefore it suffices to confess to anyone.

Objection 3: Further, confession is necessary in order that the measure of satisfaction should be imposed on the penitent. Now, sometimes another than a priest might be more discreet than many priests are in imposing the measure of satisfaction on the penitent. Therefore it is not necessary to confess to a priest.

Objection 4: Further, confession was instituted in the Church in order that the rectors might know their sheep by sight. But sometimes a rector or prelate is not a priest. Therefore confession should not always be made to a priest.

On the contrary, The absolution of the penitent, for the sake of which he makes his confession, is imparted by none but priests to whom the keys are intrusted. Therefore confession should be made to a priest.

Further, confession is foreshadowed in the raising of the dead Lazarus to life. Now our Lord commanded none but the disciples to loose Lazarus (Jn. 11:44). Therefore confession should be made to a priest.

I answer that, The grace which is given in the sacraments, descends from the Head to the members. Wherefore he alone who exercises a ministry over Christ's true body is a minister of the sacraments, wherein grace is given; and this belongs to a priest alone, who can consecrate the Eucharist. Therefore, since grace is given in the sacrament of Penance, none but a priest is the minister of the sacrament: and consequently sacramental confession which should be made to a minister of the Church, should be made to none but a priest.

Reply to Objection 1: James speaks on the presupposition of the Divine institutions: and since confession had already been prescribed by God to be made to a priest, in that He empowered them, in the person of the apostles, to forgive sins, as related in Jn. 20:23, we must take the words of James as conveying an admonishment to confess to priests.

Reply to Objection 2: Baptism is a sacrament of greater necessity than Penance, as regards confession and absolution, because sometimes Baptism cannot be omitted without loss of eternal salvation, as in the case of children who have not come to the use of reason: whereas this cannot be said of confession and absolution, which regard none but adults, in whom contrition, together with the purpose of confessing and the desire of absolution, suffices to deliver them from everlasting death. Consequently there is no parity between Baptism and confession.

Reply to Objection 3: In satisfaction we must consider not only the quantity of the punishment but also its power, inasmuch as it is part of a sacrament. In this way it requires a dispenser of the sacraments, though the quantity of the punishment may be fixed by another than a priest.

Reply to Objection 4: It may be necessary for two reasons to know the sheep by sight. First, in order to register them as members of Christ's flock, and to know the sheep by sight thus belongs to the pastoral charge and care, which is sometimes the duty of those who are not priests. Secondly, that they may be provided with suitable remedies for their health; and to know the sheep by sight thus belongs to the man, i.e. the priest, whose business it is to provide remedies conducive to health,

such as the sacrament of the Eucharist, and other like things. It is to this knowledge of the sheep that confession is ordained.

Whether it is ever lawful to confess to another than a priest?

Objection 1: It would seem that it is never lawful to confess to another than a priest. For confession is a sacramental accusation, as appears from the definition given above (Q[7], A[1]). But the dispensing of a sacrament belongs to none but the minister of a sacrament. Since then the proper minister of Penance is a priest, it seems that confession should be made to no one else.

Objection 2: Further, in every court of justice confession is ordained to the sentence. Now in a disputed case the sentence is void if pronounced by another than the proper judge; so that confession should be made to none but a judge. But, in the court of conscience, the judge is none but a priest, who has the power of binding and loosing. Therefore confession should be made to no one else.

Objection 3: Further, in the case of Baptism, since anyone can baptize, if a layman has baptized, even without necessity, the Baptism should not be repeated by a priest. But if anyone confess to a layman in a case of necessity, he is bound to repeat his confession to a priest, when the cause for urgency has passed. Therefore confession should not be made to a layman in a case of necessity.

On the contrary, is the authority of the text (Sent. iv, D, 17).

I answer that, Just as Baptism is a necessary sacrament, so is Penance. And Baptism, through being a necessary sacrament has a twofold minister: one whose duty it is to baptize, in virtue of his office, viz. the priest, and another, to whom the conferring of Baptism is committed, in a case of necessity. In like manner the minister of Penance, to whom, in virtue of his office, confession should be made, is a priest; but in a case of necessity even a layman may take the place of a priest, and hear a person's confession.

Reply to Objection 1: In the sacrament of Penance there is not only something on the part of the minister, viz. the absolution and imposition of satisfaction, but also something on the part of the recipient, which is also essential to the sacrament, viz. contrition and confession. Now satisfaction originates from the minister in so far as he enjoins it, and from the penitent who fulfills it; and, for the fulness of the sacrament, both these things should concur when possible. But when there is reason for urgency, the penitent should fulfill his own part, by being contrite and confessing to whom he can; and although this person cannot perfect the sacrament, so as to fulfill the part of the priest by giving absolution, yet this defect is supplied by the High Priest. Nevertheless confession made to a layman, through lack* of a priest, is quasi-sacramental, although it is not a perfect sacrament, on account of the absence of the part which belongs to the priest. [*Here and in the Reply to OBJ[2] the Leonine edition reads "through desire for a priest".]

Reply to Objection 2: Although a layman is not the judge of the person who confesses to him, yet, on account of the urgency, he does take the place of a judge over him, absolutely speaking, in so far as the penitent submits to him, through lack of a priest.

Reply to Objection 3: By means of the sacraments man must needs be reconciled not only to God, but also to the Church. Now he cannot be reconciled to the Church, unless the hallowing of the Church reach him. In Baptism the hallowing of the Church reaches a man through the element itself applied externally, which is sanctified by "the word of life" (Eph. 5:26), by whomsoever it

is conferred: and so when once a man has been baptized, no matter by whom, he must not be baptized again. On the other hand, in Penance the hallowing of the Church reaches man by the minister alone, because in that sacrament there is no bodily element applied externally, through the hallowing of which grace may be conferred. Consequently although the man who, in a case of necessity, has confessed to a layman, has received forgiveness from God, for the reason that he fulfilled, so far as he could, the purpose which he conceived in accordance with God's command, he is not yet reconciled to the Church, so as to be admitted to the sacraments, unless he first be absolved by a priest, even as he who has received the Baptism of desire, is not admitted to the Eucharist. Wherefore he must confess again to a priest, as soon as there is one at hand, and the more so since, as stated above (ad 1), the sacrament of Penance was not perfected, and so it needs yet to be perfected, in order that by receiving the sacrament, the penitent may receive a more plentiful effect, and that he may fulfill the commandment about receiving the sacrament of Penance.

Whether, outside a case of necessity, anyone who is not a priest may hear the confession of venial sins?

Objection 1: It would seem that, outside a case of necessity, no one but a priest may hear the confession of venial sins. For the dispensation of a sacrament is committed to a layman by reason of necessity. But the confession of venial sins is not necessary. Therefore it is not committed to a layman.

Objection 2: Further, Extreme Unction is ordained against venial sin, just as Penance is. But the former may not be given by a layman, as appears from James 5:14. Therefore neither can the confession of venial sins be made to a layman.

On the contrary, is the authority of Bede (on James 5:16, "Confess . . . one to another") quoted in the text (Sent. iv, D, 17).

I answer that, By venial sin man is separated neither from God nor from the sacraments of the Church: wherefore he does not need to receive any further grace for the forgiveness of such a sin, nor does he need to be reconciled to the Church. Consequently a man does not need to confess his venial sins to a priest. And since confession made to a layman is a sacramental, although it is not a perfect sacrament, and since it proceeds from charity, it has a natural aptitude to remit sins, just as the beating of one's breast, or the sprinkling of holy water (cf. TP, Q[87], A[3]).

This suffices for the Reply to the First Objection, because there is no need to receive a sacrament for the forgiveness of venial sins. and a sacramental, such as holy water or the like, suffices for the purpose.

Reply to Objection 2: Extreme Unction is not given directly as a remedy for venial sin, nor is any other sacrament.

Whether it is necessary for one to confess to one's own priest?

Objection 1: It would seem that it is nol necessary to confess to one's own priest. For Gregory [*Cf. Can. Ex auctoritate xvi, Q[1]] says: "By our apostolic authority and in discharge of our solicitude we have decreed that priests, who as monks imitate the ex. ample of the apostles, may

preach, baptize, give communion, pray for sinners, impose penances, and absolve from sins." Now monks are not the proper priests of anyone, since they have not the care of souls. Since, therefore confession is made for the sake of absolution it suffices for it to be made to any priest.

Objection 2: Further, the minister of this sacrament is a priest, as also of the Eucharist. But any priest can perform the Eucharist. Therefore any priest can administer the sacrament of Penance. Therefore there is no need to confess to one's own priest.

Objection 3: Further, when we are bound to one thing in particular it is not left to our choice. But the choice of a discreet priest is left to us as appears from the authority of Augustine quoted in the text (Sent. ix, D, 17): for he says in De vera et falsa Poenitentia [*Work of an unknown author]: "He who wishes to confess his sins, in order to find grace, must seek a priest who knows how to loose and to bind." Therefore it seems unnecessary to confess to one's own priest.

Objection 4: Further, there are some, such as prelates, who seem to have no priest of their own, since they have no superior: yet they are bound to confession. Therefore a man is not always bound to confess to his own priest.

Objection 5: Further, "That which is instituted for the sake of charity, does not militate against charity," as Bernard observes (De Praecept. et Dispens. ii). Now confession, which was instituted for the sake of charity, would militate against charity, if a man were bound to confess to any particular priest: e.g. if the sinner know that his own priest is a heretic, or a man of evil influence, or weak and prone to the very sin that he wishes to confess to him, or reasonably suspected of breaking the seal of confession, or if the penitent has to confess a sin committed against his confessor. Therefore it seems that one need not always confess to one's own priest.

Objection 6: Further, men should not be straitened in matters necessary for salvation, lest they be hindered in the way of salvation. But it seems a great inconvenience to be bound of necessity to confess to one particular man, and many might be hindered from going to confession, through either fear, shame, or something else of the kind. Therefore, since confession is necessary for salvation, men should not be straitened, as apparently they would be, by having to confess to their own priest.

On the contrary, stands a decree of Pope Innocent III in the Fourth Lateran Council (Can. 21), who appointed "all of either sex to confess once a year to their own priest."

Further, as a bishop is to his diocese, so is a priest to his parish. Now it is unlawful, according to canon law (Can. Nullus primas ix, Q[2]; Can. Si quis episcoporum xvi, Q[5]), for a bishop to exercise the episcopal office in another diocese. Therefore it is not lawful for one priest to hear the confession of another's parishioner.

I answer that, The other sacraments do not consist in an action of the recipient, but only in his receiving something, as is evident with regard to Baptism and so forth. though the action of the recipient is required as removing an obstacle, i.e. insincerity, in order that he may receive the benefit of the sacrament, if he has come to the use of his free-will. On the other hand, the action of the man who approaches the sacrament of Penance is essential to the sacrament, since contrition, confession, and satisfaction, which are acts of the penitent, are parts of Penance. Now our actions, since they have their origin in us, cannot be dispensed by others, except through their command. Hence whoever is appointed a dispenser of this sacrament, must be such as to be able to command something to be done. Now a man is not competent to command another unless he have jurisdiction over him. Consequently it is essential to this sacrament, not only for the minister to be in orders, as in the case of the other sacraments, but also for him to have jurisdiction: wherefore he that has no

jurisdiction cannot administer this sacrament any more than one who is not a priest. Therefore confession should be made not only to a priest, but to one's own priest; for since a priest does not absolve a man except by binding him to do something, he alone can absolve, who, by his command, can bind the penitent to do something.

Reply to Objection 1: Gregory is speaking of those monks who have jurisdiction, through having charge of a parish; about whom some had maintained that from the very fact that they were monks, they could not absolve or impose penance, which is false.

Reply to Objection 2: The sacrament of the Eucharist does not require the power of command over a man, whereas this sacrament does, as stated above: and so the argument proves nothing. Nevertheless it is not lawful to receive the Eucharist from another than one's own priest, although it is a real sacrament that one receives from another.

Reply to Objection 3: The choice of a discreet priest is not left to us in such a way that we can do just as we like; but it is left to the permission of a higher authority, if perchance one's own priest happens to be less suitable for applying a salutary remedy to our sins.

Reply to Objection 4: Since it is the duty of prelates to dispense the sacraments, which the clean alone should handle, they are allowed by law (De Poenit. et Remiss., Cap. Ne pro dilatione) to choose a priest for their confessor; who in this respect is the prelate's superior; even as one physician is cured by another, not as a physician but as a patient.

Reply to Objection 5: In those cases wherein the penitent has reason to fear some harm to himself or to the priest by reason of his confessing to him, he should have recourse to the higher authority, or ask permission of the priest himself to confess to another; and if he fails to obtain permission, the case is to be decided as for a man who has no priest at hand; so that he should rather choose a layman and confess to him. Nor does he disobey the law of the Church by so doing, because the precepts of positive law do not extend beyond the intention of the lawgiver, which is the end of the precept, and in this case, is charity, according to the Apostle (1 Tim. 1:5). Nor is any slur cast on the priest, for he deserves to forfeit his privilege, for abusing the power intrusted to him.

Reply to Objection 6: The necessity of confessing to one's own priest does not straiten the way of salvation, but determines it sufficiently. A priest, however, would sin if he were not easy in giving permission to confess to another, because many are so weak that they would rather die without confession than confess to such a priest. Wherefore those priests who are too anxious to probe the consciences of their subjects by means of confession, lay a snare of damnation for many, and consequently for themselves.

Whether it is lawful for anyone to confess to another than his own priest, in virtue of a privilege or a command given by a superior?

Objection 1: It would seem that it is not lawful for anyone to confess to another than his own priest, even in virtue of a privilege or command given by a superior. For no privilege should be given that wrongs a third party. Now it would be prejudicial to the subject's own priest, if he were to confess to another. Therefore this cannot be allowed by a superior's privilege, permission, or command.

Objection 2: Further, that which hinders the observance of a Divine command cannot be the subject of a command or privilege given by man. Now it is a Divine command to the rectors of churches to "know the countenance of their own cattle" (Prov. 27:23); and this is hindered if another than the rector hear the confession of his subjects. Therefore this cannot be prescribed by any human privilege or command.

Objection 3: Further, he that hears another's confession is the latter's own judge, else he could not bind or loose him. Now one man cannot have several priests or judges of his own, for then he would be bound to obey several men, which would be impossible, if their commands were contrary or incompatible. Therefore one may not confess to another than one's own priest, even with the superior's permission.

Objection 4: Further, it is derogatory to a sacrament, or at least useless, to repeat a sacrament over the same matter. But he who has confessed to another priest, is bound to confess again to his own priest, if the latter requires him to do so, because he is not absolved from his obedience, whereby he is bound to him in this respect. Therefore it cannot be lawful for anyone to confess to another than his own priest.

On the contrary, He that can perform the actions of an order can depute the exercise thereof to anyone who has the same order. Now a superior, such as a bishop, can hear the confession of anyone belonging to a priest's parish, for sometimes he reserves certain cases to himself, since he is the chief rector. Therefore he can also depute another priest to hear that man.

Further, a superior can do whatever his subject can do. But the priest himself can give his parishioner permission to confess to another. Much more, therefore, can his superior do this.

Further, the power which a priest has among his people, comes to him from the bishop. Now it is through that power that he can hear confessions. Therefore, in like manner, another can do so, to whom the bishop gives the same power.

I answer that, A priest may be hindered in two ways from hearing a man's confession: first, through lack of jurisdiction; secondly, through being prevented from exercising his order, as those who are excommunicate, degraded, and so forth. Now whoever has jurisdiction, can depute to another whatever comes under his jurisdiction; so that if a priest is hindered from hearing a man's confession through want of jurisdiction, anyone who has immediate jurisdiction over that man, priest, bishop, or Pope, can depute that priest to hear his confession and absolve him. If, on the other hand, the priest cannot hear the confession, on account of an impediment to the exercise of his order, anyone who has the power to remove that impediment can permit him to hear confessions.

Reply to Objection 1: No wrong is done to a person unless what is taken away from him was granted for his own benefit. Now the power of jurisdiction is not granted a man for his own benefit, but for the good of the people and for the glory of God. Wherefore if the higher prelates deem it expedient for the furthering of the people's salvation and God's glory, to commit matters of jurisdiction to others, no wrong is done to the inferior prelates, except to those who "seek the things that are their own; not the things that are Jesus Christ's" (Phil. 2:21), and who rule their flock, not by feeding it, but by feeding on it.

Reply to Objection 2: The rector of a church should "know the countenance of his own cattle" in two ways. First, by an assiduous attention to their external conduct, so as to watch over the flock committed to his care: and in acquiring this knowledge he should not believe his subject, but, as far as possible, inquire into the truth of facts. Secondly, by the manifestation of confession; and with regard to this knowledge, he cannot arrive at any greater certainty than by believing his subject,

because this is necessary that he may help his subject's conscience. Consequently in the tribunal of confession, the penitent is believed whether he speak for himself or against himself, but not in the court of external judgment: wherefore it suffices for this knowledge that he believe the penitent when he says that he has confessed to one who could absolve him. It is therefore clear that this knowledge of the flock is not hindered by a privilege granted to another to hear confessions.

Reply to Objection 3: It would be inconvenient, if two men were placed equally over the same people, but there is no inconvenience if over the same people two are placed one of whom is over the other. In this way the parish priest, the bishop, and the Pope are placed immediately over the same people, and each of them can commit matters of jurisdiction to some other. Now a higher superior delegates a man in two ways: first, so that the latter takes the superior's place, as when the Pope or a bishop appoints his penitentiaries; and then the man thus delegated is higher than the inferior prelate, as the Pope's penitentiary is higher than a bishop, and the bishop's penitentiary than a parish priest, and the penitent is bound to obey the former rather than the latter. Secondly, so that the delegate is appointed the coadjutor of this other priest; and since a co-adjutor is subordinate to the person he is appointed to help, he holds a lower rank, and the penitent is not so bound to obey him as his own priest.

Reply to Objection 4: No man is bound to confess sins that he has no longer. Consequently, if a man has confessed to the bishop's penitentiary, or to someone else having faculties from the bishop, his sins are forgiven both before the Church and before God, so that he is not bound to confess them to his own priest, however much the latter may insist: but on account of the Ecclesiastical precept (De Poenit. et Remiss., Cap. Omnis utriusque) which prescribes confession to be made once a year to one's own priest, he is under the same obligation as one who has committed none but venial sins. For such a one, according to some, is bound to confess none but venial sins, or he must declare that he is free from mortal sin, and the priest, in the tribunal of conscience, ought, and is bound, to believe him. If, however, he were bound to confess again, his first confession would not be useless, because the more priests one confesses to, the more is the punishment remitted, both by reason of the shame in confessing, which is reckoned as a satisfactory punishment, and by reason of the power of the keys: so that one might confess so often as to be delivered from all punishment. Nor is repetition derogatory to a sacrament, except in those wherein there is some kind of sanctification, either by the impressing of a character, or by the consecration of the matter, neither of which applies to Penance. Hence it would be well for him who hears confessions by the bishop's authority, to advise the penitent to confess to his own priest, yet he must absolve him, even if he declines to do so.

Whether a penitent, at the point of death, can be absolved by any priest?

Objection 1: It would seem that a penitent, at the point of death, cannot be absolved by any priest. For absolution requires jurisdiction, as stated above (A[5]). Now a priest does not acquire jurisdiction over a man who repents at the point of death. Therefore he cannot absolve him.

Objection 2: Further, he that receives the sacrament of Baptism, when in danger of death, from another than his own priest, does not need to be baptized again by the latter. If, therefore, any priest can absolve, from any sin, a man who is in danger of death, the penitent, if he survive the danger,